DZINGAI MATUNGA
versus
LOVENESS MABHUNU
and
EMMANUEL MHIKE
and
FELISTUS MAKURA
and
MINISTER OF LOCAL GOVERNMENTS, PUBLIC WORKS AND NATIONAL HOUSING

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 14 July 2025 and 9 January 2026

Court application for an interdict and eviction

B Maunze, for the Applicant
B Julajulah, for the 1st Respondent
No appearance for 2nd to 4th Respondents

TAKUVA J: This is a court application for an interdict and eviction and the applicant seeks the following order;

> "1.The 1st, 2nd and 3rd Respondents, together with all those occupying stand number 1696 Arcon Township, Goromonzi, be and are hereby interdicted from interfering in any way whatsoever with the applicant's occupation of stand (1696 Acorn Township, Goromonzi)
> 2.The 1st and 2nd Respondents, together with all those occupying stand number 1696 Arcon Township, Goromonzi, be and are hereby evicted from stand 1696 Arcon Township Goromonzi.
> 3.The 1st,2nd and 3rd Respondents shall bear costs of suit on an ordinary scale."

BACKGROUND FACTS

The Applicant instituted these proceedings seeking the eviction of the 1st, 2nd and 3rd Respondents from Stand No. 1696 Acorn Township, Goromonzi, together with an interdict restraining them from interfering with his occupation and development of the said stand.

The Applicant avers that on or about 2 August 2012 he entered into a written lease agreement with the fourth Respondent, the Minister of Local Government, Public Works and

National Housing, in respect of the property in question. In terms of the lease, the Applicant was entitled to take vacant possession and occupation of the stand, subject to payment of rentals to the Ministry and rates to the local authority. The Applicant alleges that he has complied fully with his contractual obligations, including payment of rentals, rates, and the purchase price stipulated in the lease agreement.

Despite the existence of the lease, the Applicant contends that the first, second and third Respondents have unlawfully interfered with his rights by denying him the opportunity to develop the stand and by erecting a structure thereon without any lawful authority. He asserts that the Respondents hold no lease or other documentation authorising their occupation of the land and that they are neither paying rentals to the fourth Respondent nor rates to the local authority. According to the Applicant, the structure erected by the Respondents is illegal and unapproved, and their continued presence on the stand deprives him of vacant possession notwithstanding his ongoing financial obligations under the lease.

The second Respondent, who also deposes to the notice of opposition on behalf of the first Respondent, opposes the application both *in limine* and on the merits. Several preliminary objections are raised, chief among them being that the matter is not suitable for determination on the papers due to alleged disputes of fact, including the timing and legality of the 1st Respondent's occupation and whether the Applicant was ever given vacant possession by the lessor. It is further contended that no cause of action has been disclosed against the second Respondent in his personal capacity.

On the merits, the Respondents dispute the Applicant's entitlement to eviction relief, asserting that the 1st Respondent has been in occupation of the stand since 2011, prior to the conclusion of the Applicant's lease. They aver that the stand forms part of land allocated to members of Zvakatanga Sekuseka Housing Co-operative and that the first Respondent is a *bona fide*, subscription-paying member of that co-operative. It is alleged that the 1st Respondent was duly allocated the stand by the co-operative and authorised to construct a permanent dwelling thereon, which structure is said to have been inspected and approved.

The Respondents further challenge the validity and regularity of the Applicant's lease, contending that it was issued despite the Applicant not being a member of the housing co-operative and at a time when the stand was already occupied and developed by the first Respondent. They maintain that the responsibility to deliver vacant possession rests with the lessor and not with the court, and that the Applicant cannot seek eviction or interdictory relief

to obtain initial possession where none was ever given. It is against this facts that the applicant seeks to have grant its prayer granted.

PRELIMINARY POINTS

The Respondents raised several points *in limine*, namely that the Applicant employed the wrong procedure due to alleged disputes of fact, that no cause of action is disclosed against the second and third Respondents and that the Applicant lacks *locus standi* to seek eviction.

I proceed todeal with each point in turn.

Alleged Dispute of Facts and Wrong Procedure

The Respondents contend that the matter is not amenable to determination on the papers because there are disputes of fact relating to occupation, vacant possession, and the manner in which the lease was granted. It is trite that not every factual dispute renders motion proceedings inappropriate. The court is enjoined to examine whether the disputes are real, genuine, and material, or whether they are contrived for the purpose of avoiding a decision on the papers.

In *Room Hire Co (Pvt) Ltd* v *Jeppe Street Mansions (Pty) Ltd* 1949 (3) SA 1155 (T) at 1163, the court articulated the principle that motion proceedings are only unsuitable where there are *bona fide* disputes of fact which cannot be resolved without oral evidence. This principle has been consistently applied in our jurisdiction. In *casu*, the core facts are common cause. It is not disputed that the Applicant holds a written lease issued by the 4th Respondent in respect of the stand in question. It is further not disputed that the Respondents are in occupation of the property and that such occupation is not founded upon any lease or written authority issued by the 4th Respondent. The Respondents' reliance on allocation by a housing co-operative and alleged prior occupation does not displace the existence of the Applicant's lease, nor does it create a factual dispute requiring *viva voce* evidence. At best, these are legal defences, not factual disputes.

As was stated in *Supa Plant Investments (Pvt) Ltd* v *Chidavaenzi* 2009 (2) ZLR 132 (H) at 136F – G, MAKARAU JP (as she then was), made the following pertinent observations:

> "A material dispute of fact arises when material facts alleged by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

The principle set in the afore-mentioned case underscores that not every denial or contradiction in motion proceedings creates a genuine dispute of fact. A dispute is material only when the parties' conflicting allegations are such that the court cannot resolve them on the papers alone and would require oral evidence to determine the truth. This ensures that courts do not allow applications to fail on technical denials or argumentative assertions where the underlying facts are common cause. I am accordingly satisfied that the alleged disputes of fact are neither real nor material, and this matter was properly brought by way of application. The point on wrong procedure is therefore without merit and is dismissed.

No Cause of Action Against the second and third Respondents

It is argued that that no cause of action is disclosed against the second respondent as he does not reside at the stand and is sued without specification of capacity. This submission cannot be upheld.

The Applicant alleges interference with his rights of occupation and development by the first, second and third Respondents. The second Respondent himself avers that he represents the first Respondent and actively participates in resisting the Applicant's rights. In matters of eviction and interdict, it is sufficient that a respondent is alleged to be participating in or facilitating unlawful occupation or interference.

In *United Bottlers (Pvt) Ltd* v *Murwisi* 2002 (2) ZLR 186 (H), the court held that a cause of action is disclosed where the pleadings allege conduct on the part of the respondent which infringes or threatens the applicant's rights. The Applicant need not, at the preliminary stage, prove the extent of each respondent's physical occupation.

Whether the second and third Respondents ultimately bear personal liability is a matter for determination on the merits. At this stage, the founding affidavit discloses sufficient allegations linking the second and third Respondents to the complained-of conduct. The point *in limine* is accordingly premature and is dismissed. The court shall therefore proceed to deal with the matter on the merits.

ISSUES FOR DETERMINATION

1. Whether the Applicant holds a valid and enforceable right of occupation in terms of the lease.
2. Whether the Respondents have any lawful authority to occupy the stand.
3. Whether the Respondents' conduct constitutes unlawful interference with the Applicant's rights.

4. Whether the Applicant is entitled to eviction, interdictory relief, and costs.

ANALYSIS

Whether the Applicant holds a valid and enforceable right of occupation

It is common cause that on 2 August 2012 the Applicant entered into a written lease agreement with the fourth Respondent, the Minister of Local Government, Public Works and National Housing, in respect of Stand No. 1696 Acorn Township, Goromonzi. The lease agreement was attached to the founding papers and its existence has not been disputed. What is challenged by the Respondents is the manner in which the lease was obtained and its alleged irregularity.

In law, however, a lease agreement issued by the responsible Minister constitutes lawful authority to occupy State land until set aside by a competent court. Administrative acts remain valid and enforceable unless and until they are reviewed and nullified. The Respondents did not institute review proceedings challenging the lease. Instead, they seek to impeach its validity collaterally through opposition papers. This is impermissible.

Further, the Applicant demonstrated compliance with the lease by payment of rentals, rates, and the stipulated purchase price. These facts reinforce the conclusion that the lease is operative and enforceable. The court is therefore satisfied that the Applicant holds a valid and enforceable right of occupation arising from the lease.

Whether the Respondents have lawful authority to occupy the stand

The Respondents' claim to occupation is premised on allocation by a housing cooperative and alleged prior occupation dating back to 2007. Crucially, no lease, permit, or allocation letter issued by the 4th Respondent was produced. It is settled law that housing cooperatives do not own State land and cannot convey real rights therein.

In *Jean Pierre Kusabe & Another* v *City of Harare & Others* HH 14/16, the court made it clear that a cooperative may only facilitate allocation on behalf of the Ministry and cannot sell or confer ownership of State land. Any purported allocation made without Ministerial authority is legally ineffective.

The Respondents' reliance on cooperative registers and subscription payments does not elevate their claim above that of a lessee holding a Ministerial lease. At best, their dispute

lies with the cooperative or the Ministry. It does not entitle them to occupy land without lawful authority.

Accordingly, the court finds that the Respondents are unlawful occupiers of the stand.

Whether the Respondents' conduct amounts to unlawful interference

The erection of structures on land lawfully leased to another, without that lessee's consent or lawful authority, constitutes unlawful interference with the lessee's rights. The Respondents admit to having constructed a permanent structure on the stand. Whether such structure was inspected or not does not cure the absence of legal authority to occupy the land. In *Afro Chem Dealers (Pvt) Ltd* v *Gomo & Others* HH 71/09 it was held;

> "A real right is a right in a thing which entitles the holder to vindicate his right, i.e. to enforce his right in the thing for his own benefit as against the world; that is against all persons whatsoever. Another definition of a real right is that it is a right in a thing which confers on the holder of the right an exclusive benefit in the thing which benefit is indefeasible by any other person."

A lease, though a limited real right, entitles the lessee to exclusive occupation enforceable against the world at large. The Respondents' continued occupation and development of the stand directly impede the Applicant's right to vacant possession and enjoyment. Their conduct therefore constitutes unlawful interference.

Whether the Applicant is entitled to eviction, interdictory relief, and costs

The Respondents argued that this matter involves "double allocation" and that the balance of equities favours them due to developments on the land. Reliance was placed on *Guga* v *Moyo & Others* 2000 (2) ZLR 458 (S). That authority is distinguishable. It applies to double sales by the same seller where neither party holds transfer. In the present matter, the Respondents do not derive their claim from the same legal source as the Applicant. The Applicant's rights flow from the Minister, the lawful allocating authority and the Respondents' claim does not. Even if equities were relevant, courts cannot sanction illegality. In *Agson Mafuta Chioza* v *Smoking Williams Siziba* SC 4/2015 Patel JA held

> "This rule is absolute and admits of no exception. It is expressed in the maxim *ex turpi causa non oritur actio*. It is based on the principle, expressed variously, that the court cannot aid a party to defeat the clear intention of an ordinance or statute; that courts of justice cannot recognize and give validity to that which the legislature has declared shall be illegal and void; and that the courts will not permit to be done indirectly and obliquely what has expressly and directly been forbidden by the legislature."

The court cannot recognise or protect rights arising from an illegal or unauthorised allocation of State land. The invocation of s 74 of the Constitution is also misplaced. The Applicant seeks eviction through a court process, precisely as the Constitution requires. Section 74 does not immunise unlawful occupation from judicial eviction; it regulates it.

CONCLUSION

The Applicant has established a clear right arising from a valid lease; ongoing injury through unlawful occupation and interference; and the absence of an alternative effective remedy. Applicant holds a valid and enforceable lease issued by the lawful allocating authority. The Respondents have failed to demonstrate any lawful basis for their occupation. Their continued presence on the stand constitutes unlawful interference with the Applicant's rights. Equity cannot be invoked to defeat legality. The Applicant is therefore entitled to eviction and interdictory relief.

DISPOSITION

It is accordingly ordered as follows;

1. The first, second and third Respondents, together with all those occupying stand number

   1696 Arcon Township, Goromonzi, be and are hereby interdicted from interfering in

   any way whatsoever with the applicant's occupation of stand (1696 Acorn

   Township, Goromonzi)

2. The first and second Respondents, together with all those occupying stand number 1696

   Arcon Township, Goromonzi, be and are hereby evicted from stand 1696 Arcon Township Goromonzi.

3. The first, second and third Respondents shall bear costs of suit on an ordinary scale.

TAKUVA J:……..

Mtombeni, Mukwesha & Muzawazi Legal Practitioners, applicant's legal practitioners
Julajulah Law Chambers, first respondent's legal practitioners